

Constitutional Law

Year II, Semester I

Chapter Two: Some concepts relating to Constitution

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Chapter Two: Constitutional Law and Some Related concepts

2.1 The Concept of state

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Chapter Two: Constitutional Law and

- There are few concepts that best be treated in relation to constitutional law study than any other courses.
- They impinge, one way or another, upon constitutional law **adoption**, **application** and **analysis**.
- The most important ones are the concept of **State, Government, Nations, Democracy and Sovereignty**.

2.1 The Concept of state

- A state is better felt than defined since it exists in every human activity either as an active player or at least as a supervising organ.
- These activities could range from those having communal character up to strictly private affairs.
- For instance the state has a say in education, development, defense and so forth.
- Moreover, marriage, divorce, adoption, etc have also pass through the state's regulation, one way or another.

2.1 The Concept of state

- A state is a political institution that establishes sovereign jurisdiction within defined borders, and exercises authority through a set of permanent institutions which are recognizably public.
- Elements of a state:
 - 1. Population**
 - 2. Territory**
 - 3. Government**
 - 4. Sovereignty**
 - 5. International Recognition?**

some scholars have argued that international recognition be an essential element of state.

2.1 The Concept of state

- **According to this definition, a state has five features:**
 1. It has a **sovereign power over all individuals** and groups where it has won political supremacy.
 2. Such sovereign power is to be exercised within **a defined territory** which should be measurable and recognizable by other states.
 3. The state should have a **dominant exercise of power which must be, if worse, backed by coercion**. This is to mean that the state must have monopoly in using coercion to secure compliance to its laws and standards that address the common good.
 4. The exercise of power is done through its permanent institutions. And
 5. Such institutions are, in contrast to the private institutions such as family and civil societies, **recognizably public**, in the sense that they address the public interest and are financed by the public money.

2.2 . Government

- Now we are going to see the second concept relating to Constitution and Constitutional law.
- Government is a very common word
- What does government sound for you?
- Broadly speaking 'to govern' means to **rule or to have control over** others.
- Government therefore can be taken to include **any mechanism through which ordered rule is maintained**, its central features **being the ability to make collective decisions and the capacity to enforce them.**
- A form of government can thus be identified in almost all social institutions: families, schools, businesses, trade unions and so on.
- However, the latter type of situations could properly be named as institutions of governance.
- Government is more commonly understood to refer to the formal and institutional processes that operate at the national level to maintain public order and facilitate collective action.
- The core functions of government are thus to **make law** (legislation), implement law (execution) and interpret law (adjudication).

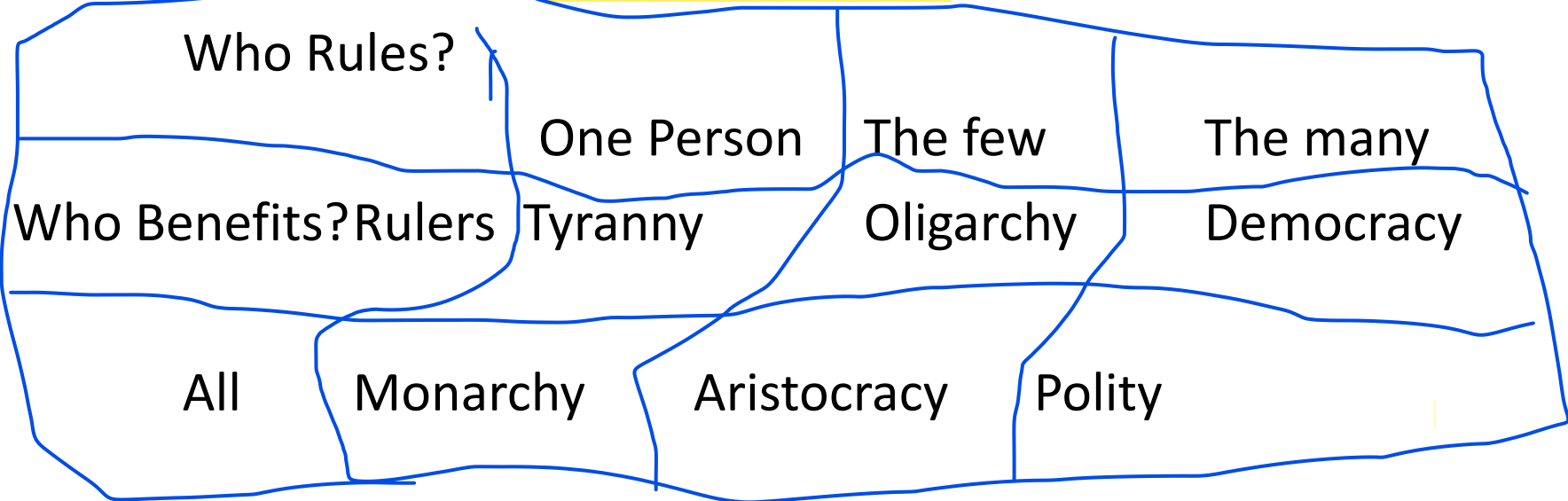
The principal differences between government and state are the following:

State	Government
The state is wider than government	Government is part of the state .
The state is an inclusive association that encompasses all the institutions of the public realm and embraces all the members of the community (in their capacity as citizens).	• Government is the means through which the authority of the state is brought into operation. • In making and implementing state policy, government is 'the brain' of the state and it perpetuates the state's existence.
The state is a continuing, or even a permanent entity .	Government is temporary : governments come and go, and systems of government can be reformed and remodelled.
The state exercises impersonal authority . The personnel of state bodies is recruited and trained in a bureaucratic manner and is (usually) expected to be politically neutral, enabling state bodies to resist the ideological interests of the government of the day.	That is, the common good or general will.
The state, in theory at least, represents the permanent interests of society.	Government, on the other hand, represents the partisan sympathies of those who happen to be in power at a particular time.

2.2 . Government

- There exist various forms of governments based on the classifications adopted from the ancient political philosopher **Aristotle**.
- His refined classification of governments in to six varieties has been adopted by many writers.
- Look into this table very closely.

A figure Adopted from **Andrew Heywood** (Politics 1997; 27)



Who Rules?	One Person	The few	The many
Who Benefits? Rulers	Tyranny	Oligarchy	Democracy
	Monarchy	Aristocracy	Polity

Government

		one	few	many
Who Benefits?	Rulers	Tyranny	Oligarchy	Democracy
	All	Monarchy	Aristocracy	Polity

2.2 . Government

- According to this classification, **tyranny**, **oligarchy** and **democracy** are forms of government where a **single person**, **the few** or **the many exercise power** in their own interests and at the expense of others, respectively.
- Whereas, **monarchy**, **aristocracy** and **polity** are preferred forms of government where a single person, the few or the many exercise power in the interest of others.

2.3 Nation

- What is a nation?
- It is not unusual to find the use of state, nation, country, ethnic group and race interchangeably. However, these have deep distinctions.
- **Nation** and **nationalism** have won a tremendous attention worldwide and the cause for widespread disputes justified by nationalism is mainly attributed to the misunderstanding as to the exact meaning of a nation.
- 'Nation' is a derivative of a Latin word, 'nasci' to mean 'to be born'.
- It is a very complex phenomenon describing interplay of **cultural**, **political** and **psychological** factors.

Culturally, a nation is a group of people bound together by a common language, religion, history and traditions.

Politically, a nation is group of people who regard themselves as a natural political community.

Psychologically, a nation is a group of people distinguished by a shared loyalty or affection in the form of patriotism.

However, such an attachment is not a necessary condition for membership of a nation; even those who lack national pride may still recognize that they 'belong' to the nation.

2.3 Nation

- Thus, such objective and subjective elements involved in the definition of a nation make the concept much more complex.
- Objectively speaking, every nation has its own peculiarities by exhibiting common language, culture, religion, etc. However, it does not end here.
- They also, subjectively speaking, have a psychological tie to be political entities within a group that shares such common cultural values.
- Thus, the members in a nation, regard themselves as a nation, a collectivity, a distinctive political community.
- This, however, is not the case in other groupings such as ethnic group.
- An ethnic group, though shares a common identity and patriotism-the objective element-they still lack a common political aspiration.

2.4. Democracy

- Democracy-is also derived from the ancient Greece.
- It is a combination of two terms; **Demo**, ‘demos’ in Greek and ‘Cracy’, ‘cratos’ in Greek.
- The later refers to **power or rule** and the former refers to ‘**the people**’ although originally the Greeks used this to mean ‘the poor’ to ‘the many.’
- *‘Rule by the people.’*
- All countries of the world claim to be democratic and speak of it as basic virtue of any government.

2.4. Democracy

The following meanings are being accorded to democracy by different politicians and scholars:

- A form of government in which the people rule themselves directly and continuously, without the need for professional politicians or public officials,
- A system of rule by the poor and disadvantaged,
- A society based on equal opportunity and individual merit, rather than hierarchy and privilege,
- A system of decision-making based on the principle of majority rule,
- A system of welfare and redistribution aimed at narrowing social inequalities,

2.4. Democracy

- A system of rule that secures the rights and interests of minorities by placing checks upon the power of the majority,
- A means of filling public offices through a competitive struggle for the popular vote,
- A system of government that serves the interests of the people regardless of their participation in public life.

Expressive and short description of the nature of democracy had been given by Abraham Lincoln in 1864 and it goes “**government of the people, by the people, for the people.**”

- It is crucial to answer the following three important questions in understanding the nature of democracy: **who are the people, in what sense should the people rule, and how far should popular rule extend?**

2.4. Democracy

- It must be clear by now that **democracy implies power distribution.**
- For early Greek writers the 'demos' represented **the disadvantaged and propertyless masses.**
- Whereas others understood 'the people' as enshrined in democracy to mean the general will or collective will.
- Finally, the people can be thought of as a collection of free and equal individuals, each of whom has a right to make **autonomous decisions.**

2.4. Democracy

- To begin with, to consider only the poor as having a say implies a bias to such group of the society based on their lack of material wealth and there is no any rational ground to do so.
- When it comes to **the second** view where the people refer to the majority, there is a tendency for the tyranny of the majority, in which the will of the majority or numerically strongest overrides the will of the minority.
- When we see the **third and the final view** it tends to imply that only unanimous decisions can be binding upon the demos, and so dramatically restricts the application of democratic principles.

2.4. Democracy

- The core principle of democracy is thought to be '**political equality**'.
- In broad terms this is to mean an equal distribution of political power and influence.
- Political equality ensures, however the 'people' is defined, each individual member carries the same weight: all voices are equally loud.
- This can be understood in two ways.
- **In liberal democratic theory**, political equality implies an equal distribution of political rights: the right to vote, the right to stand for election and so on. This is often summed up as the principle 'one person, one vote; one vote, one value'.

2.4. Democracy

- **In contrast, socialists**, amongst others, link political influence to factors such as the control of economic resources and access to the means of mass communication.
- From this perspective, political equality implies not merely equal voting rights, but also a significant level of social equality.
- Where there exists political equality, therefore, there is democracy and thus distribution of political power as widely as possible.

2.4. Democracy

The other important question is how should the people rule in an atmosphere of political equality?

If we say that democracy is government by the people, then people govern themselves by participating in the making of crucial decisions that structure their lives and determine the fate of their society.

This participation may, however, take two basic forms.

In the case of direct democracy, popular participation entails direct and continuous involvement in decision-making, through devices such as referendums, mass meetings, or even interactive television.

2.4. Democracy

The alternative and more common form of democratic participation is the act of voting, which is the central feature of what is usually called **representative democracy**.

When citizens vote, they are not making the decisions that structure their lives; rather they choose who will make those decisions in their behalf.

What makes voting democratic is that it makes the officials publicly accountable and enables the public see that the office-holders are there discharging their duties in accord with their wishes.

2.4. Democracy

Now that we have decided who the people are, and how they should rule, it is necessary to consider how far their rule should extend. What is the proper realm of democracy? What issues is it right for the people to decide, and what should be left to individual citizens?

With this regard, the models of democracy that have been constructed on the basis of liberal individualism have proposed that democracy be restricted to political life, with politics being narrowly defined.

From this perspective, the purpose of democracy is to establish, through some process of popular participation, a framework of laws within which individuals can conduct their own affairs and pursue their own private interests. Democratic solutions, then, are appropriate only for matters that specifically relate to the community; used in other circumstances, democracy amounts to an infringement of liberty.

2.4. Democracy

- However, socialists and radical democrats have an opposing view to this answer to our third question that relates with the proper realm of democracy.
- According to, for instance, radical democracy proponents, democracy is seen not as a means of laying down a framework within which individuals can go about their own business, but rather as a general principle that is applicable to all areas of social existence.
- People are seen as having a basic right to participate in the making of any decisions that affect their lives, with democracy simply being the collective process through which this is done.
- This position is evident in socialist demands for the collectivization of wealth and the introduction of workers' self-management, both of which are seen as ways of democratizing economic life.
- Instead of endorsing mere political democracy, socialists have therefore called for 'social democracy' or 'industrial democracy'.

Demo –preferred type of rule

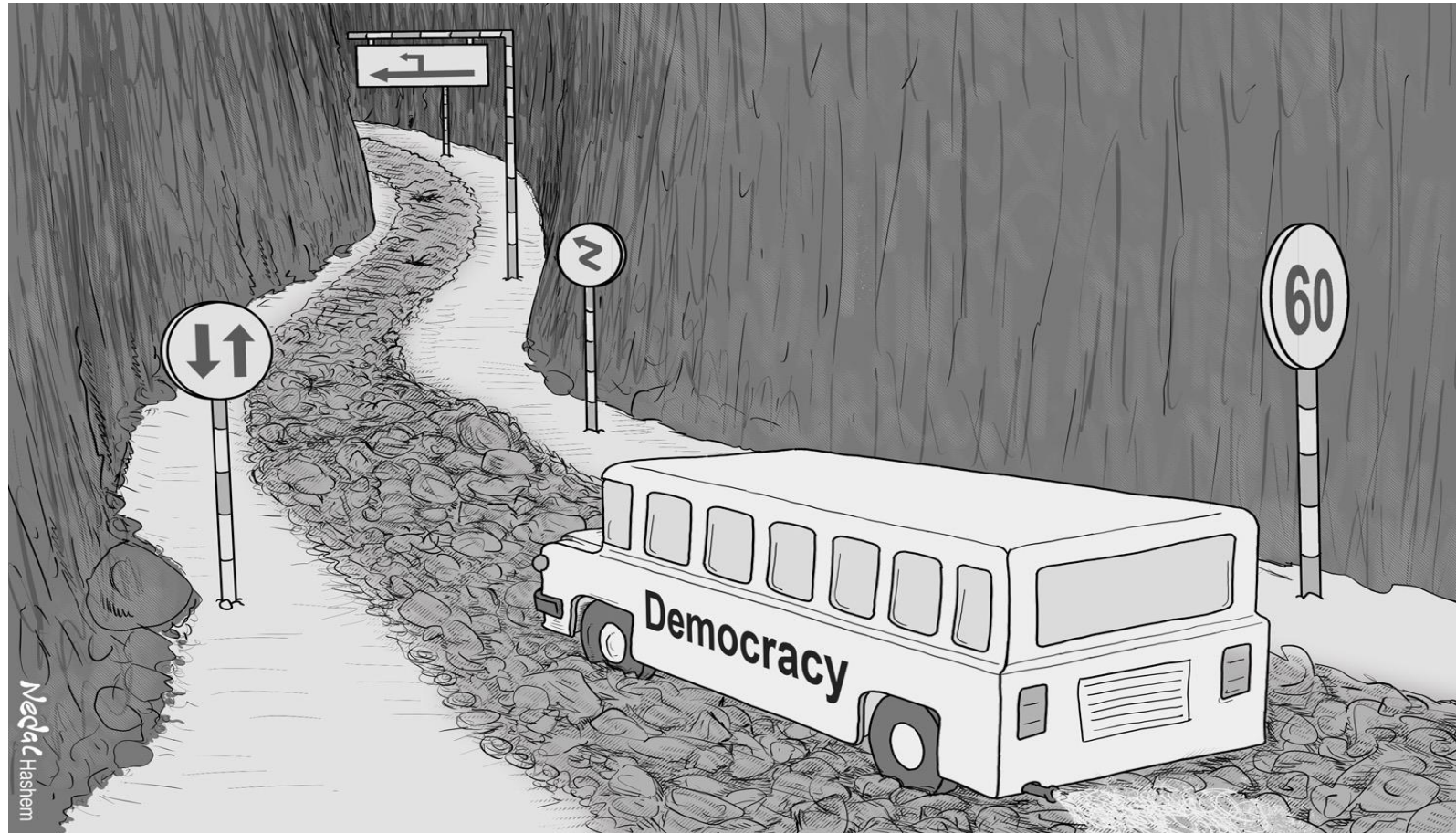
- Today with the end of Monarchies and other sources of legitimacy many regimes claim to be democracies- **Fashion**

Yet we have-

- One party systems (China, Africa 1960-1990)
- Dominant party systems (Japan, Sweden...)
- Two party systems
- Multiparty systems (Europe, **PR** system)

Problem of definition?

Democracy bus



elements

1. Self gov't, rule by the people (directly or through delegates in legislative bodies)

Thus it places key role on **legislative bodies**

A. Free and fair elections? For what purpose? It is not a mere routine

- ✓ Right to **elect** leaders and if need be **change** them **produce/evict governments**
- ✓ Influence policy (**we chose policies too**)
- ✓ People have **some control** over their govt
- ✓ Those elected take office and **decide vs** in many countries invisible hands such as **army, party figures, elite/business groups** limit power of elected bodies?

B. Inclusive?

No individual, party or section of society should be excluded from entry to competition/campaign?

- How inclusive? **Vs militant democracy**
- **'demo need not commit suicide to prove its worthiness'**
- **If exclusion is must, who decides???** Historically even in the West- demo excluded 40% of the people (women until early 20thC), the poor, illiterate, slaves, minorities
- At its core now is **'one man, one vote'** equality
- Universal adult suffrage – inclusiveness

C. Regular elections, is not one time exercise

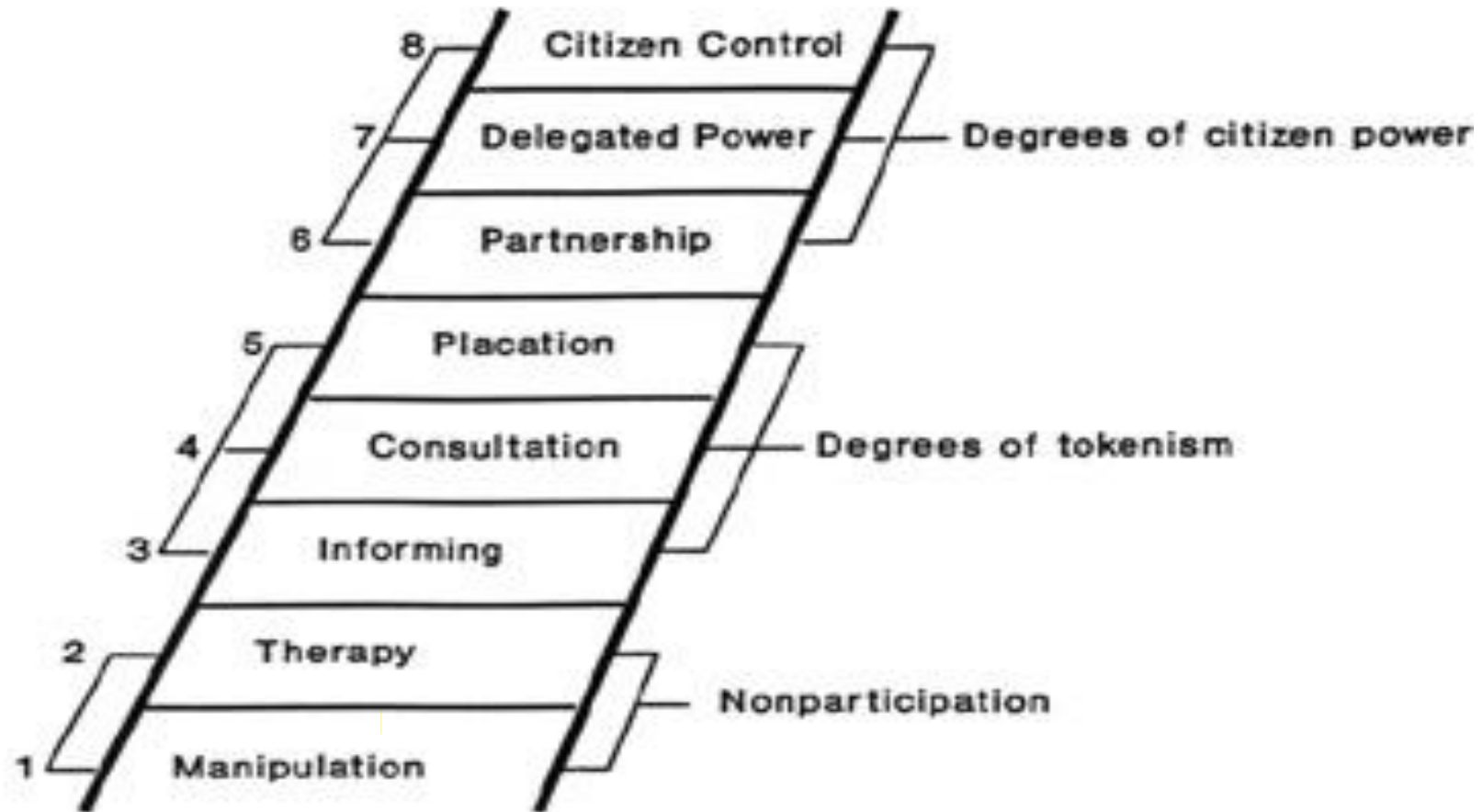
- It creates the expectation that it will continue, this is taken **for granted**
- A norm that the way to get to power is through regular elections '**as the only game in town**'
- The above implies that it is institutionalized, it is an **enduring regime**
- **Little or no fear that elections will not happen**

2. Parties core institutions?

- **Impartial administration** and umpire E.Board
- Respect for out comes/rules of the game
- Competition and **choices** vs **one party??**
- Debate between **minimalist/process** vs demo with some **content**
- Right to vote/elected, association, expression and press –thus **democratic rights critical**
- **Is not merely about process????**
- **Parties (aggregate interest), legislative bodies, press –forum for debate-Informed citizen/voter**
- **key institutions of demo?**

3. Demo as effective participation: control over agenda

Figure E-1
The Ladder of Citizen Participation



Source: Arnstein, 1969

4. Majority rule, minority rights?

- Western (UK/USA) democracy assumes **shifting majority and minority roles** (pros –stable govt, **but less representative**)
- **Today's majority becomes tmrw minority and...**
- Yet in divided societies it is not so
- There is a risk of permanent maj vs permanent minority and the latter may not accept to be treated as such for ever
- May **not accept the decision of majority** and **conflict may occur**

5. Electoral system key??

- Electoral system affects the **outputs** of elections and **content** of demo
- **FPTP- majoritarian** (relative majority)
 - . the losers go home empty handed as the payoff is winner -takes –all
 - Eg. A, 35%; B, 33; C, 32, who will be the winner in FPTP?
- **PR electoral system – power sharing**
 - Under Proportional Representation, political parties or candidates will have the percent of seats that reflect their support.
 - **Minimum threshold**
 - **Representation in public institutions in proportion to the votes they secure (NL, Swiss etc)**
- **More representative but, risks –govt of confusion/fragile coalition**

5. Electoral system key??

- Democracy is **precondition for federal stability**, elected bodies at various levels (federal, state, local) come to power through elections
- They are the eyes, ears of the people –Accountability
- Federations that are not demo have failed???

Global trends: demo and devt?

- West plus USA/India –**gradual/simultaneous school**
 - where demo and devt reinforce each other- possible to have demo even while poor
- Singapore/China –devt without demo –**devt not necessarily lead to demo** though often assumed
- South Korea/Japan – devt and dominant party leads to multi party demo –emergence of **middle class key**
- **Arab spring/Revolutions** –end up ISIS (Iraq), Military rule (Egypt, Eth 1974), Libya, Yemen, Somalia-
- Tunisia possible to demo transition

- **Trouble** in advanced demo- economic stagnation/wide spread **inequality**, shrinkage in the **middle class**
- Political decay/**re-patrimonialization**- elite capture of media, congress etc and pol institutions not able to keep with the pace of popular demand
- **China as alternative** to many d-ing countries along with Iran, Russia

Challenges: Eth- 57 parties?

- First past the post –**winner takes** all(A,B,C)
- Divided opposition (**intra party demo?**) and less accommodative pol culture
- Pro poor and grass root based ruling party
- Little space for social demo- where there is no well **organized labor (what percent of pop)**
- Little space for liberal parties until middle class emerges along with the **rich**
- EPRDF/Prosperity – a default dominant party?
- **The fate of multiparty democracy?**

Democracy

- ① Governing power achieved via free elections
- ② Competition for electoral power
- ③ Basic human rights enjoyed

–Federalism is about dynamics of sharing power

–Electoral democracy at different levels creates legitimacy –
multiple centers of power

–Promotes meaningful participation and accountability

–Underlying conditions for sustained PA-GG-DD

2.5 Sovereignty

Sovereignty, in its simplest sense, is the principle of absolute and unlimited power. It could be described either as internal or external sovereignty, parliamentary or popular sovereignty.

By internal sovereignty we are referring to the notion of a supreme power/authority within the state, located in the body that makes decisions that are binding on all citizens, groups and institutions within the state's territorial boundaries.

When it comes to the external one it is also termed as territorial sovereignty and refers to a state's place in the international order and its capacity to act as an independent and autonomous entity.

The peace treaty of Westphalia in 1648 established the notion of territorial sovereignty as a doctrine of non-interference in the affairs of other nations.

2.5 Sovereignty

- Parliamentary sovereignty, as followed by such countries of the world as the UK and New Zealand, is a concept in constitutional law that applies to situations whereby a legislative body has absolute sovereignty, meaning it is supreme to all other government institutions (including any executive or judicial bodies as they may exist).
- Furthermore, it implies that the legislative body may change or repeal any prior legislative acts.
- Parliamentary sovereignty contrasts with most notions of judicial review, where a court may overturn legislation deemed unconstitutional.

2.5 Sovereignty

- Finally, by popular sovereignty we are referring to the situation where the sovereign power holders are the people and not the parliament or any other organ. This is described in our FDRE

Constitution Article 8:

Article 8: Sovereignty of the People

1. All sovereign powers reside in the Nations, Nationalities and Peoples of Ethiopia.
2. This Constitution is an expression of their sovereignty. Their sovereignty shall be exercised through their representatives elected in accordance with this Constitution and through their direct democratic participation.

2.5 Sovereignty

- The Ethiopian people-the nations, nationalities and peoples-are described to have the ultimate power in all the acts of the government and such power is primarily exercised, unlike the case of direct democracy, through their elected representatives.
- This reflects also the notion of representative democracy.
- In addition to that such popular sovereignty is stated to have been expressed by the Federal Constitution as well as through direct participation in the acts of government.

2.5 Sovereignty

- In federal state structures such as ours, sovereignty also refers to powers which the state governments possess independently of the central/the federal government, in the sense that the federal and the state governments have their own defined jurisdictions as described in the federal constitutions that both have agreed to.
- Any deviation from those specifications will tantamount to infringement of sovereign powers.
- Thus, the federal constitution is like a pact that the central and the federated units have put as the rule of the game for their continued and coordinated existence.

2.6 Rule of Law

- Inter related with a number of principles
- **Supremacy of the constitution, fundamental rights, judicial independence and separation of powers**
- **Each contributing for its implementation**
- **The rule of law requires the government to exercise its power in accordance with well-established and clearly written rules, regulations, and legal principles. Rule of law Vs rule of men**

2.6 Rule of Law

- **The United Nations Secretary General, in one of its speeches while addressing the General Assembly had defined rule of law in the following manner;**
- *'a principle of governance in which all persons , institutions, entities, public and private, including the State itself are accountable to laws that are publicly promulgated, equally enforced, and independently adjudicated, laws which are consistent with international human rights norms and standards'*

2.6 Rule of Law

- The rule of law is rather an ambiguous term that can mean different things in different contexts.
- In one context the term means rule according to law, which is to mean that no individual can be instructed by the government to pay civil damages or undergo criminal punishment except in strict accordance with well-established and clearly defined laws and procedures.
- Secondly, the term may mean rule under the law, which again is to mean that no branch of government is above the law, and no public official may act arbitrarily or unilaterally outside the law.

2.6 Rule of Law

- **In a third and final context the term means rule according to a higher law, which means no written law may be enforced by the government unless it confirms with certain unwritten, universal principles of fairness, morality, and justice which transcend human legal systems.**

2.6 Rule of Law

- See the discussion in Chapter one on Rule of Law

2.7 Constitution and Constitutionalism

- The relationship of constitution and constitutionalism?
- The fact that a country has come up with a constitution does not mean that it governs itself up to the standards that constitutionalism expects.
- For a constitution to have any meaning, it must be tuned with ***constitutionalism***.
- **Constitutionalism**, in its narrow sense, is the practice of limited government ensured by the existence of a constitution.
- Thus, constitutionalism can, in this sense, be said to exist when government institutions and political processes are effectively ***constrained by constitutional rules***.
- Constitutionalism comprised of ideas and theories that essentially put limitations on political power in general, and of the government's sway over citizens in particular.
- Refer to a number of separate but related features of a democratic political system.

2.7 Constitution and Constitutionalism

- The doctrine or system of government in which the governing power is limited by enforceable rules of law, and concentration of power is limited by various checks and balances so that the basic rights of individuals and groups are protected.
- “A commitment to limitations on ordinary political power; it revolves around a political process, one that overlaps with democracy in seeking to balance state power and individual and collective rights; it draws on particular cultural and historical contexts from which it emanates; and it resides in public consciousness.”
- Constitutionalism recognizes the need for government with powers but at the same time insists that limitation be placed on those powers.
- It envisages checks and balances by restraining the powers of governmental organs by not making them uncontrolled and arbitrary.

2.7 Constitution and Constitutionalism

More broadly, constitutionalism is a set of political values and aspirations that reflect the desire to protect liberty through the establishment of internal and external checks on government power.

- In this sense, constitutionalism is a species of political liberalism.
- It is typically expressed in the form of support for constitutional provisions that achieve this goal: for example
 - Popular sovereignty
 - Separation of Powers (checks and balances)
 - Responsible and accountable government
 - Rule of law
 - An independent judiciary
 - Respect for individual rights
 - Respect to self-determination
 - Civilian control of the military
 - Police governed by law and judicial control

2.7 Constitution and Constitutionalism

- Separation of powers could be taken as the best example that serves as an internal checking mechanism to ensure constitutionalism in a particular country.
- The existence of judicial review, a constitution, a bill of rights, bicameralism, and decentralization may be taken as external checking mechanisms.
- Having a constitution may not, therefore, lead us to conclude that there exists a constitutional government unless the constitution has the character of limiting the government power through these internal and external checks on the exercise of government power.

2.8 Challenges of Constitutionalism

What are the challenges of Constitutionalism?